

25VECV02850 25VECV02850

County: los-angeles

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Case Number: 25VECV02850 Hearing Date: August 25, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

SHARON ASHER,

Plaintiff,

vs.

NORMANDIE/WILSHIRE RETIREMENT HOTEL,
LLC, a California limited liability company dba CALIFORNIA HEALTHCARE AND
REHABILITATION CENTER; LONGWOOD MANAGEMENT, LLC, a California limited
liability company; MARK NABIL GOBRIAL, M.D.; and DOES 1 through 30, inclusive,

Defendants.

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CASE NO.: 25VECV02850

ORDER

SUSTAINING DEFENDANT MARK NABIL GOBRIAL, M.D.'S

DEMURRER WITH LEAVE TO AMEND

ORDER

DENYING DEFENDANT MARK NABIL GOBRIAL, M.D.'S MOTION

TO STRIKE

I.

BACKGROUND

Plaintiff Sharon Asher

("Plaintiff") brings this elder abuse action against Normandie/Wilshire Retirement Hotel, LLC, dba California Healthcare and Rehabilitation Center ("Normandie"), Longwood Management, LLC ("Longwood"), and Mark Nabil Gobrial, M.D. ("Dr. Gobrial") (collectively, "Defendants"). Plaintiff is 84 years old and alleges while in Normandie's care, she slipped and fell and was denied physical therapy following her fall despite repeated requests to facility staff for physical therapy.

Dr. Gobrial demurrers to
and moves to strike portions of the Complaint.

II.

PROCEDURAL HISTORY

On May 21,
2025, Plaintiff filed a Complaint alleging (1) Elder Abuse & Neglect (Welf.
& Inst. Code § 15610.57)[1]; (2)
Premises Liability (Negligence); and (3) Negligence & Medical Malpractice.

ON July 30,
2025, Normandie and Longwood filed an Answer.

On September
9, 2025, the Court granted the parties' stipulation to strike a demand for
attorneys' fees contained in Normandie and Longwood's Answer.

On July 27,
2026, Dr. Gobrial filed the instant Demurrer with Motion to Strike.

As of August 24,
2026, no opposition has been filed.

III.

MEET AND CONFER

Before filing

a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

Dr. Gobrial's

counsel attests he mailed a meet and confer letter to Plaintiff requesting a telephonic meet and confer. (See Declaration of RENEI A. CABALLES filed July 27, 2026, ¶¶ 3-4.) Dr. Gobrial's counsel attests Plaintiff, who is now unrepresented, did not respond to counsel's meet and confer letter or request for a telephonic meet and confer. (See id.)

The Court

finds Dr. Gobrial did not satisfy his obligation to meet and confer in person, by telephone, or by video conference. The Court expects the moving party to reach out by any of these methods to meet and confer in good faith. In the interest of judicial efficiency, the Court will consider the merits of the demurrer.

IV.

DEMURRER

A.

Legal Standard

A demurrer

may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).) “[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded.” (Id.)

Allegations are to be liberally construed. (See Code Civ. Proc. § 452.)

In testing the sufficiency

of the complaint, the court must assume

the truth of (1) the properly pleaded factual allegations; (2) facts that can

be reasonably inferred from those expressly pleaded; and (3) judicially noticed

matters. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) A demurrer can only be sustained when it disposes of an entire cause of action. (See *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See *id.*) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

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B. Analysis

1. Elder Abuse & Neglect (Welf. & Inst. Code § 15610.57)

The Elder Abuse and Dependent Adult Civil Protection Act (Welf. & Inst. Code § 15600 et seq.) requires, among other things, a caretaking or custodial relationship in which the defendant has assumed significant responsibility for attending to one or more of the dependent adult's basic needs that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance. (See *Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 158-159.) The Act distinguishes between professional negligence and statutory neglect and cautions against blurring the two. (*Id.* at 159-160.)

The necessary elements for a dependent adult abuse cause of action are: (1) defendant had responsibility for meeting the basic

needs of the dependent adult, such as nutrition, hydration, hygiene or medical care; (2) defendant knew of conditions that made the dependent adult unable to provide for their own basic needs; (3) defendant denied or withheld goods or services necessary to meet the dependent adult's basic needs, either (a) with knowledge that injury was substantially certain to befall the dependent adult (if the plaintiff alleges oppression, fraud or malice) or (b) with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness); and (4) defendant's neglect caused the dependent adult to suffer physical harm, pain or mental suffering. (See *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 407.) "[T]he facts constituting the neglect and establishing the causal link between the neglect and the injury 'must be pleaded with particularity,' in accordance with the pleading rules governing statutory claims." (Id.)

The Act "does not apply unless the defendant health care provider had a substantial caretaking or custodial relationship, involving ongoing responsibility for one or more basic needs, with the elder patient." (*Winn v. Pioneer Med. Group, Inc.* (2016) 63 Cal.4th 148, 152.) "It is the nature of the elder or dependent adult's relationship with the defendant—not the defendant's professional standing—that makes the defendant potentially liable for neglect." (Id.) Admittance to an acute care facility is sufficient to make [a Plaintiff] a "dependent adult" who would be entitled to the [Elder Abuse Act's] protections. (See *Stewart v. Superior Court* (2017) 16 Cal.App.5th 87, 102 (citing *Welf. & Inst. Code* § 15610.23(b) and *Health & Safety Code* § 1250(a).) The Elder Abuse Act still requires, however, "a separate analysis to determine whether such a [custodial] relationship exists." (*Winn*, 63 Cal.4th at 164.)

Dr. Gobrial argues the first cause of action fails to allege conduct constituting elder abuse. Dr. Gobrial argues paragraph 9 alleges negligence arising from substandard care, not wholesale failure to provide medical care. (See *Dem.* at 6:21-23.) Dr. Gobrial argues Plaintiff fails to plead with particularity a substantial caretaking or custodial relationship with him existed, and thus, he would at most be liable for professional negligence. (See *id.*, at 7:14-17 citing *Covenant Care, Inc. v. Superior Ct.* (2004) 32 Cal.4th 771, 785 ["claims under the Elder Abuse Act are not brought against health care providers in their capacity as providers but, rather, against custodians and caregivers that abuse elders and that may or may not, incidentally, also be health care

providers.”] and *Frankland v. Etehad* (2025) 113 Cal.App.5th 503, 508, 516.)

Dr. Gobrial also argues Plaintiff fails to allege facts to support the allegations he intentionally or recklessly delayed the provision of medical care, and at most alleges negligence. (See Dem. at 9:14-16.) Dr. Gobrial argues there are no factual allegations, as opposed to conclusory allegations, that he (1) knew Plaintiff’s injury was substantially certain to occur or (2) acted with a conscious disregard of the high probability of such injury. (See *id.*, at 9:26-28, citing *Carter v. Prime Healthcare Paradise Valley, LLC* (2011) 198 Cal.App.4th 396, 406-407 [“plaintiffs’ [u]se of such terminology [as fraudulently and recklessly] cannot cure [the] failure to point out exactly how or in what manner the [Hospital has] transgressed.”].)

The Court finds the first cause of action for elder abuse is insufficiently alleged against Dr. Gobrial because Plaintiff insufficiently alleges Dr. Gobrial had the requisite “robust caretaking or custodial relationship” with Plaintiff. “[A] physician’s conduct in providing negligent medical services to an elder residing at a skilled nursing facility does not—without more—constitute ‘neglect’ because that physician lacks the requisite ‘robust caretaking or custodial relationship’ with the elder [citation] and is accordingly being sued for no more than his professional negligence (which, as noted above, falls outside the Act).” (*Frankland v. Etehad* (2025) 113 Cal.App.5th at 509 citing *Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 158, citation omitted and emphasis added.) In *Frankland*, the Court found plaintiff failed to state a custodial relationship because plaintiff alleged conclusory statements—including that the physician defendant “engage[d] in a residential in-facility robust medical caretaking and controlling relationship with [plaintiff]” and “expressly and impliedly agreed to provide for [plaintiff’s] professional and custodial medical needs”—“and because they are unmoored from any supporting facts as against [defendant] [Citations.]” (*Id.*, at 515.) the *Frankland* Court further found the factual “allegations establish[ed] that [defendant’s] relationship with [plaintiff] was episodic and limited.” (*Id.*)

Here, the Complaint alleges Dr. Gobrial “served as Plaintiff Asher’s admitting and attending physician...and was responsible for overseeing her medical care.” (Compl., ¶ 9.) His negligence includes failure to implement fall prevention measures, failure to modify her care plan, and failure to ensure proper physical therapy. (See *id.*, ¶ 9.) Plaintiff

alleges “Defendants, and each of them, had custodial responsibility to attend to the essential health and safety needs of Plaintiff Asher.” (Id., ¶¶ 19, 21.) The Court agrees the Complaint’s conclusory allegations Dr. Gobrial had a custodial relationship with Plaintiff are insufficient to survive demurrer. There are no specific factual allegations “substantiating the necessary substance of the relationship” between Dr. Gobrial and Plaintiff to support the conclusory allegation Dr. Gobrial had a custodial relationship with Plaintiff. (See Frankland, 113 Cal.App.5th at 516.)

The Complaint also insufficiently alleges the third element. Plaintiff makes the conclusory allegation Defendants’ “failures reflect a reckless and deliberate disregard for Plaintiff Asher’s health” and “Defendants’ acts and omissions were done recklessly, fraudulently, and with malice and oppression...and were callous and indifferent to the care and safety of Plaintiff...” (Compl., ¶¶ 20, 25.) Plaintiff alleges she was denied physical therapy following her fall which “prolonged her recovery, increased her pain, and reduced her overall mobility.” (Id., ¶ 8.) The Court disregards the conclusory allegation Dr. Gobrial’s actions were done recklessly or with malice. Further, although the Complaint alleges Dr. Gobrial failed to act on Plaintiff’s medical plan, it fails to allege Dr. Gobrial withheld physical therapy either with knowledge injury was substantially certain to befall Plaintiff or with conscious disregard of such injury. (See id., ¶¶ 8-9, 19.)

Thus, the Court SUSTAINS Dr. Gobrial’s Demurrer to the First Cause of Action for Elder Abuse WITH LEAVE TO AMEND.

V.

MOTION TO STRIKE

A.

Legal Standard

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (See Code Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (See id. at § 436(b).) This provision is for “the striking of a pleading due to improprieties in its form or in the

procedures pursuant to
which it was filed.” (Ferraro
v. Camarlinghi (2008) 161
Cal.App.4th 509, 528 [emphasis in original].) The grounds for moving to strike
must appear on the face of the pleading or by way of judicial notice. (See
Code Civ. Proc. at § 437.)

B.
Analysis

The Court
denies the Motion as moot. A
plaintiff in a dependent adult abuse case brought under Welfare and
Institutions Code § 15657 may be awarded attorney's fees and may, on
appropriate proof, recover punitive damages. (See Wel. Inst. Code § 15657(a), (c).) The paragraphs
and relief prayed for that Dr. Gobrial moves to strike are encompassed or
supported by the first cause of action, which did not survive demurrer. Thus,
the Court DENIES as moot Dr. Gobrial's Motion to Strike.

VI.
CONCLUSION

Based on the
foregoing, the Court SUSTAINS Dr. Gobrial's Demurrer to the First Cause of Action for Elder Abuse WITH LEAVE
TO AMEND.

The Court DENIES
as moot Dr. Gobrial's Motion to Strike.

Plaintiff has
leave to amend her Complaint until September 11, 2026.

The Court
continues the Trial Setting Conference to January 21, 2027, at 8:30 a.m. The
parties are ordered to file a Joint Status Update by no later than January 14,
2027.

IT
IS SO ORDERED.

DATED: August 25, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.